

24PSCV04006 24PSCV04006

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Department: 6

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Case Number: 24PSCV04006 Hearing Date: August 12, 2026 Dept: 6

CASE

NAME: Jacob

Leazenby v. Mia Miller, et al.

Defendants'

Motion for Sanctions for No Show Costs re Plaintiff's Independent Medical Examination

TENTATIVE

RULING

The Court DENIES Defendants' Motion for Sanctions for No Show Costs re Plaintiff's Independent Medical Examination.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is an auto accident case. On November 20, 2024, plaintiff Jacob Leazenby (Plaintiff) filed this action against defendants Mia Miller, Rebecca Miller (collectively, Defendants) and Does 1 to 50, alleging causes of action for motor vehicle and general negligence.

On June 30, 2026, Defendants moved for sanctions for no show costs re Plaintiff's independent medical examination. Plaintiff did not oppose the Motion.

LEGAL

STANDARD

To

the extent authorized by the chapter governing any particular discovery method or any other provision of this title, the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process:

(a)

The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

(Code Civ.

Proc., § 2023.030, subd. (a).)

DISCUSSION

Defendants seek \$1,500.00 in monetary sanctions for Plaintiff's failure to appear at a duly noticed independent medical examination. Defendants indicate having served an independent medical examination notice on Plaintiff on January 7, 2026, for an examination on February 9, 2026. Defendants indicate they received no objection to the notice. Defendants then state that their counsel was later informed that Plaintiff failed to appear for the examination and that Defendants' counsel incurred a \$1,500.00 no show fee as a result. Defendants indicate having asked Plaintiff's counsel whether Plaintiff would pay the no show fee and that Plaintiff's counsel stated a check was mailed, but Defendants' counsel has yet to receive the payment.

The Court finds Defendants' Motion fails to comply with Code of Civil Procedure section 2023.040, which provides that, "[a] request for a

sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought." (Code Civ. Proc., § 2023.040.) Defendants' Notice of Motion fails to specify the party against whom the sanction is sought. (See Notice, p. 1.) Further, Defendants' counsel did not take any steps to confirm Plaintiff's appearance at the IME after unilaterally setting a date and there is no evidence that Plaintiff or Plaintiff's counsel engaged in the misuse of the discovery process.

Based on the foregoing, the Court DENIES the Motion.

CONCLUSION

The Court DENIES Defendants' Motion for Sanctions for No Show Costs re Plaintiff's Independent Medical Examination.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.